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It has long been established that the United States cannot appeal in a criminal case without express congressional authorization. *United States* v. *Wilson,* 420 U. S. 332, 336 (1975); *United States* v. *Sanges,* 144 U. S. 310 (1892). Only two Terms ago *Wilson* traced the uneven course of such statutory authority until 1970 when Congress amended the Criminal Appeals Act, 420 U. S., at 336–339, and that history need not be repeated here. See also *United States* v. *Sisson,* 399 U. S. 267, 307–308 (1970). It suffices for present purposes that this Court in *Wilson* found that in enacting § 3731 as Title III of the Omnibus Crime Control Act of 1970, 84 Stat. 1890, "Congress intended to remove all statutory barriers to Government appeals and to allow appeals whenever the Constitution would permit." 420 U. S., at 337. Therefore, unless barred by the Double Jeopardy Clause of the Constitution, appeals by the Government from the judgments of acquittal entered by the District Court under Rule 29 (c) are authorized by § 3731.

Consideration of the reach of the constitutional limitations inhibiting governmental appeals was largely unnecessary during the prior regime of statutory restrictions. But see *Fong Foo* v. *United States,* 369 U. S. 141 (1962); *Kepner* v. *United States,* 195 U. S. 100 (1904). However, now that Congress has removed the statutory limitations to appeal and the relevant inquiry turns on the reach of the Double Jeopardy Clause itself, it has become "necessary to take a closer look at the policies underlying the Clause in order to determine more precisely the boundaries of the Government's appeal rights in criminal cases." *United States* v. *Wilson, supra,* at 339. In the few cases decided since 1970 that have taken this "closer look," many of the policies shaping restrictions on governmental appeal rights have been brought into sharper focus.

"The development of the Double Jeopardy Clause from its